

Court No. - 39

Case :- WRIT - C No. - 28710 of 2014

Petitioner :- Chhannu Lal Dwivedi

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- R.B. Trivedi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

We have heard Sri R.B. Trivedi, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Baleshwar Chaturvedi, learned counsel for respondents no. 2 and 3 which are Dakshinanchal Vidyut Vitaran Nigam Ltd., Agra and its officials.

The petitioner is disputing the electricity bill dated 19.3.2014 sent by the respondents for a sum of Rs.60,182/-.

Learned counsel for the respondent-Corporation has submitted that the dispute relating to the bill can be properly adjudicated under Clause 6.5 of the U.P. Electricity Supply Code, 2005 where records of the petitioner's electricity connection would be available before the competent authority and hence, this writ petition be not entertained.

We have considered the submission of learned counsel for the parties and perused the record.

The petitioner is disputing the impugned bill dated 19.3.2014 and only on the basis of exchange of affidavits, this Court under Article 226 of the Constitution of India would not be in a position to effectively adjudicate the highly disputed question of fact, therefore, it would be more appropriate that the petitioner should approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 where records of the petitioner's electricity connection would be available before the competent authority and appropriate adjudication of his dispute against electricity bill can be made.

In view of the aforesaid circumstance, this writ petition is finally disposed of with liberty to the petitioner to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 relating to his grievance against the impugned electricity bill.

No order is passed as to costs.

Order Date :- 22.5.2014

Mukesh Kr.